

SENATE No. 9

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying proposal for constitutional amendment:

Proposal for a legislative amendment to the Constitution for term renewal process.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Vincent Dixon</i>	

SENATE No. 9

By Mr. Lewis (by request), a petition (accompanied by proposal for constitutional amendment, Senate, No. 9) of Vincent Dixon, for a legislative amendment to the Constitution for term renewal process. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 11 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Proposal for a legislative amendment to the Constitution for term renewal process.

A majority of all the members elected to the Senate and House of Representatives, in joint session, hereby declares it to be expedient to alter the Constitution by the adoption of the following Article of Amendment, to the end that it may become a part of the Constitution [if similarly agreed to in a joint session of the next General Court and approved by the people at the state election next following]:

ARTICLE OF AMENDMENT.

- 1 1.) The Constitution of The Commonwealth of Massachusetts, is hereby, and thus
2 amended, to provide for the renewal of terms for judges, and other selected appointed officials,
3 every ten years, by specific process of reappointment by the Governor, and reconfirmation by the
4 Honorable Governor's Council, according to normal processes.
- 5 2.) The quality of justice, and that of judges, and similar officials, being a public policy
6 concern of all persons of Massachusetts, this provision, respecting the continuing evolution of

our legal systems; therefore these provisions are constructed, to secure those qualities, and the continued monitoring, and current updating, of those officials entrusted to such responsibilities.

3.) All appointments of judges, members of the Industrial Accident Board, and any other appointments, subject to appointment by the Governor of The Commonwealth, and affirmation, or confirmation, by the Governor's Council, shall expire at the end of ten (10) years, subject to the proper qualification of their successors.

4.) Such individuals may be reappointed by the Governor, may be reviewed by such other review and vetting processes as are appropriate, and must be reaffirmed, or reconfirmed, by the Governor's Council. No individual subject to reappointment, may serve in an active role, more than six (6) months beyond their stipulated ten (10) years, without the completion of their renewed qualification process, by such Term Renewal provisions.